

		On 02/20/25, the Court granted Plaintiff's unopposed motion to strike the answer of Defendant and enter Defendant's default due to Defendant's failure to obtain counsel. (ROA 107.) Entry of a defendant's default cuts off its right to appear in the action. (See Weil & Brown, Cal. Prac. Guide, <i>Civ. Proc. Before Trial</i>, Ch.5-A ¶ 5:6, citing <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385-386.) As such, Defendant would be unable to participate in any discovery the Court may order pursuant to these motions. Furthermore, entry of default deprives the court of jurisdiction to consider any motion other than a motion for relief from default. (<i>Id.</i>, ¶ 5:7, citing <i>W.A. Rose Co. v. Mun.Ct. (FitzSimmons)</i> (1959) 176 Cal.App.2d 67, 72.) Based on the foregoing, the motions are DENIED. <i>Counsel for Plaintiff is ordered to give notice.</i>
7.	Farkas v. Smith 23-1324888	Before the Court at present are two motions, both filed by plaintiff/cross-defendant Joel Farkas ("Farkas"), seeking orders to compel further responses from defendant/cross-complainant Jennifer Blair Smith ("Smith") as follows: (1) Motion to Compel Compliance with Plaintiff's Requests for Production of Documents, filed on 11/19/24, seeking further responses to Farkas' Requests for Production ("RFPs") Sets One and Two – specifically, for RFP Nos. 6, 7, 14 - 19, 21, 26, 28, 29, 43-45, 47 -55, 60, 64-70, and 76 ("Motion 1" below); and (2) Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set Three and Special Interrogatories, Set Four, filed on 1/22/25, seeking further responses to Farkas' RFPs Set Three, for RFP Nos. 103-105 and 111-112, and on Farkas' Special Interrogatories ("SROGs"), Set Four, for SROGs 458-460 and 463 ("Motion 2" below). Motion 1 is GRANTED on the merits and GRANTED IN PART on the sanctions request. <u>Motion 1</u> demonstrates that RFPs Set One were served on 3/3/24; Smith responded on 4/12/24 and produced some documents thereafter. (ROA 299, Canzoneri Decl., ¶¶ 2-4, Ex. A.) RFPs Set Two were served on 6/20/24; Smith responded on 9/16/24 but provided no additional documents. (<i>Id.</i> at ¶¶ 5-7, Ex. B.) Meet and confer letters were sent, but Smith's counsel did not respond. (<i>Id.</i> at ¶¶ 8-9, Exs. C and D.) By this Motion, Farkas seeks further responses and a further production for any

remaining documents for RFP Nos. 6, 7, 14 - 19, 21, 26, 28, 29, 43-45, 47 -55, 60, 64-70, and 76 from those sets.

The Opposition asserts that responsive documents were produced, that search efforts are ongoing, and for some of the RFPs, lists specific bates-numbers produced for some of the categories in the supporting declaration. (ROA 410, Hanley Decl., ¶¶ 2, 3.) That does not suffice.

Many of the RFP responses at issue here stated that documents in Smith's "possession, custody or control will be produced," but did not list them. Others made a similar representation, carving out tax returns, or stated that additional documents would be produced, but again did not list them. Others pointed to vast bates-ranges to identify responsive materials that may be contained therein. (ROA 299, Exs. A, B.) None of that is sufficient. Nor are additional assertions made only in an opposing attorney declaration, as to some of the categories at issue, adequate to address these defects. The responses need to be specific, with documents sorted and identified to correspond with the categories in the document demand. (*C.C.P. § 2031.280(a)*) ["Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond."].) And for the one RFP at issue which stated that responsive documents did not exist (No. 45), Mr. Hanley's declaration seems to now suggest that some do exist. (ROA 410, Hanley Decl., ¶ 3.)

Verified supplemental responses must be provided for each of the RFPs at issue (Nos. 6, 7, 14 - 19, 21, 26, 28, 29, 43-45, 47 -55, 60, 64-70, and 76). Those responses must identify the specific corresponding bates-numbers for what was produced in response and confirm that all responsive docs [except as already carved out in a specific response] have now been produced.

As Smith's responses were plainly defective and her counsel appears to have also failed to adequately meet and confer, sanctions are imposed on Smith and her counsel, William B. Hanley, Esq., of the Law Office of William B. Hanley, jointly and severally, in the reduced sum of \$2,500. Those sanctions are to be paid to Farkas, through his counsel of record, within 30 days after service of notice of this ruling.

Motion 2 is **GRANTED IN PART**; the sanctions request is **DENIED**.

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		<u>Motion 2</u> demonstrates that RFPs Set Three and SROGs Set Four were served on 10/15/24 and 11/5/24; Smith responded on 12/5/24. (ROA 349, Harney Decl., ¶¶ 3-5, Exs. A - C.) Smith's counsel did not respond to a subsequent request to confer. (<i>Id.</i> at ¶ 2, Ex. D.) For the SROGs, the Motion concerns Nos. 458 – 460, 463. Smith has failed to show that any of the objections are warranted here, while the requested information appears relevant to issues in dispute in the case. Motion 2 is therefore GRANTED as to SROG Nos. 458-460 and 463. For the RFPs, the Motion concerns Nos. 103 -105, 111, and 112. As to RFP Nos. 103 – 105, although financial information is protected by the right to privacy, the requested documents are directly relevant here. The motion is therefore GRANTED as to Nos. 103-105. However, RFP Nos. 111 – 112 seek to improperly invade Smith's right to medical privacy, where the requested information does not appear to be relevant to the allegations in the pleadings, nor to damages to either party. The Motion is therefore DENIED as to RFP Nos. 111 – 112. The Court DENIES the sanctions request on Motion 2, as both sides' positions had some merit. <i>Counsel for Mr. Farkas is to give notice of these rulings.</i>
8.	Guzman v. City of Santa Ana 23-1323955	Before the court are four discovery motions in which the City of Santa Ana ("City") seeks response without objection to discovery it served on plaintiff David Guzman. The first three motions seek an order that Plaintiff provide responses to Form Interrogatories, Special Interrogatories and Requests for Production. The fourth motion seeks an order that Requests for Admissions be deemed admitted. The four motions are MOOT in part and GRANTED in part, as set forth herein. <u>Service of Discovery Requests</u> Plaintiff argues initially that he was not properly served with the four sets of discovery and therefore was not obligated to provide a timely response thereto. Plaintiff claims that CCP §1010.6(c)(3) states that electronic service is not authorized until the parties agree to electronic service. That section applies to "unrepresented" parties and is not applicable because plaintiff is represented by counsel. Since plaintiff was represented by counsel, service by email was proper pursuant to CCP §1010.6(a) which states, in part, "A